

Sarafraj Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 August 2022 · Writ-C No. 23154 of 2022 · **Writ disposed; relegated to clause 6.8 objection with stay of coercive recovery.**

HEADNOTE

A Division Bench disposed of a writ against a recovery citation of Rs. 88,321/- without examining the merits, giving the consumer liberty to object under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound hearing and staying coercive action for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

The petitioner challenged a recovery citation dated 17 March 2022 for Rs. 88,321/- and sought a mandamus restraining coercive recovery and restoring electricity supply. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period. The High Court heard the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

para-6.8-objection-alternate-remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks; if submitted, it shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against a recovery citation was disposed of by relegating the consumer to a Para 6.8 objection, to be decided after hearing, without any merits determination. ¶ 1

alternative-remedy-statutory-appeal-6.8 The Court treated the clause 6.8 objection as the statutory forum for the demand and declined to examine the recovery on writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 17.03.2022, THE DEMAND OF RS. 88,321/-, AND RESTORATION OF SUPPLY

The Court expressly declined to express any opinion on the merits. ¶ 1